

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JUNE 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE N.A. v. AHNYAYALA THOMPSON
Case No. CL24-07920**

Motion to Deem Matters Admitted

Tentative Ruling:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant AHNYAYALA THOMPSON shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

While not mandated by the Code of Civil Procedure, it is a well-considered practice to meet and confer by at least sending a letter when no response to a request for admissions is received.

**CAPITAL ONE N.A. v. MICHAEL J. BREEDLOVE
Case No. CL25-04620**

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant MICHAEL J. BREEDLOVE shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

The court appreciates that while a meet and confer is not required by the Code of Civil Procedure, attorney Carr still made the effort.

Capital One N.A. v. Jose Melchor
Case No. CL25-11075

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant JOSE MELCHOR's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

MIGUEL HERRERA GARCIA, individually and on behalf of other members of the general public similarly situated, vs. CHAMPION SCAFFOLD SERVICES INC. Case No. CU24-06466

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiff MIGUEL HERRERA GARCIA moves for final approval of the settlement reached with Defendant CHAMPION SCAFFOLD SERVICES. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business